

General Education

SOCIAL STUDIES



Human Rights

WHAT ARE HUMAN RIGHTS?

- Human rights are the rights and freedoms that we all have.
- Some human rights are based on our physical needs. The right to life. To food. To shelter.
- Other human rights protect us. The right to be free from torture, cruel treatment and abuse.
- Human rights are also there to ensure we develop to our fullest potential. The right to education. To work. To participate in your community.

HUMAN RIGHTS

- Human rights refer to the "basic rights and freedoms to which all humans are entitled."

“All human beings are born free and equal in dignity and rights. They are endowed with reason and conscience and should act towards one another in a spirit of brotherhood.”

—Article 1 of the United Nations Universal Declaration on Human Rights (UDHR)

INALIENABLE RIGHTS VS. ALIENABLE RIGHTS

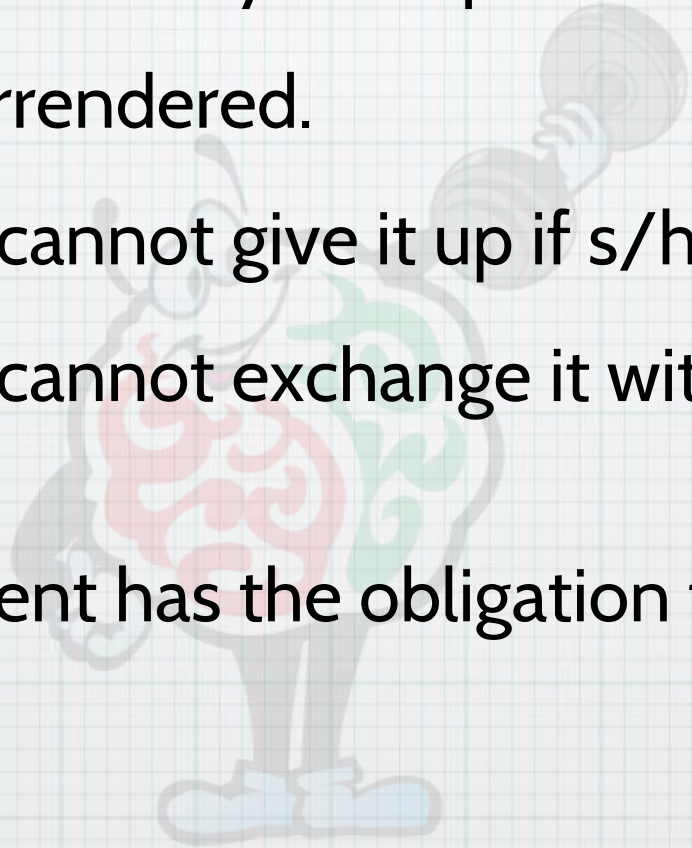
"Unalienable: incapable of being alienated, that is, sold and transferred."

- Black's Law Dictionary, Sixth Edition, page 1523

- **Inalienable rights** – Rights which are not capable of being surrendered or transferred without the consent of the one possessing such rights (*Morrison v. State, Mo. App., 252 S.W.2d 97, 101.*)

INALIENABLE RIGHTS

- Cannot be taken away from persons.
- Cannot be surrendered.
- An individual cannot give it up if s/he wishes to.
- An individual cannot exchange it with another right.
- The government has the obligation to secure them.



NATURAL VS. LEGAL RIGHTS

- ***Natural rights*** (also called moral rights or inalienable rights) are rights which are not contingent upon the laws, customs, or beliefs of a particular society or polity.
- ***Legal rights*** (sometimes also called civil rights or statutory rights) are rights conveyed by a particular polity, codified into legal statutes by some form of legislature, and as such are contingent upon local laws, customs, or beliefs.

Natural rights are thus necessarily universal, whereas legal rights are culturally and politically relative.

PERFECT VS. IMPERFECT RIGHTS

- ***Perfect rights*** – When the things which we have a right to possess or the actions we have a right to do, or may be fixed and determinate, the right is a perfect one (enforceable by legal process).
- ***Imperfect rights*** – When the thing or the actions are vague and indeterminate, the right is an imperfect one (not being enforceable titles).
- Perfect rights are enforceable through court action but imperfect rights are not.

PERFECT AND IMPERFECT RIGHTS

- If a man demand his property, which is withheld from him, the right that supports his demand is a **perfect** one; because the thing demanded is fixed and determinate.
- But if a poor man ask relief from those from whom he has reason to expect it, the right, which supports his petition, is an **imperfect** one; because the relief which he expects, is a vague indeterminate, thing.
- *The holder of a perfect right can 'require' the subject under the related duty to perform that duty.*

ABSOLUTE, LIMITED, AND QUALIFIED RIGHTS

- **Absolute rights** – These rights cannot be limited in any way. They can not be reduced or amended. *Examples include the right to protection from slavery or torture.*
- **Limited Rights** – These rights come with exceptions. An example is the right to liberty, which can be lawfully restricted. *Lawful arrest is an example of a limited right.*
- **Qualified Rights** – Government interference with these rights is allowed in special circumstances, and only when necessary in a democratic society. The interference must fulfil a pressing social need; pursue a legitimate aim; and be proportionate to the aims being pursued. *An example is government restrictions on the right to assembly and association, in order to calm a riot.*

LAW VS. ETHICS

- Ethics refers to motivation of human behavior which is derived from internal conscience of human beings. In general, ethics are the rules of right and wrong behavior. The Merriam-Webster Collegiate Dictionary defines ethics as "the principles of conduct governing an individual or a group".
- Law deals with external and visible human behaviors. Laws have penalties associated with them. If you don't obey the law, you are punished. Ethics, however, are based on principles and values.

RIGHTS & OBLIGATIONS



RIGHTS & OBLIGATIONS ARE RELATED

- Every person has rights and obligations.
- The rights of persons are obligations for others.
- Every person is obliged to respect the rights of others.
- Rights have limits.
- Every right has a corresponding duty.
- Rights and duties are related.



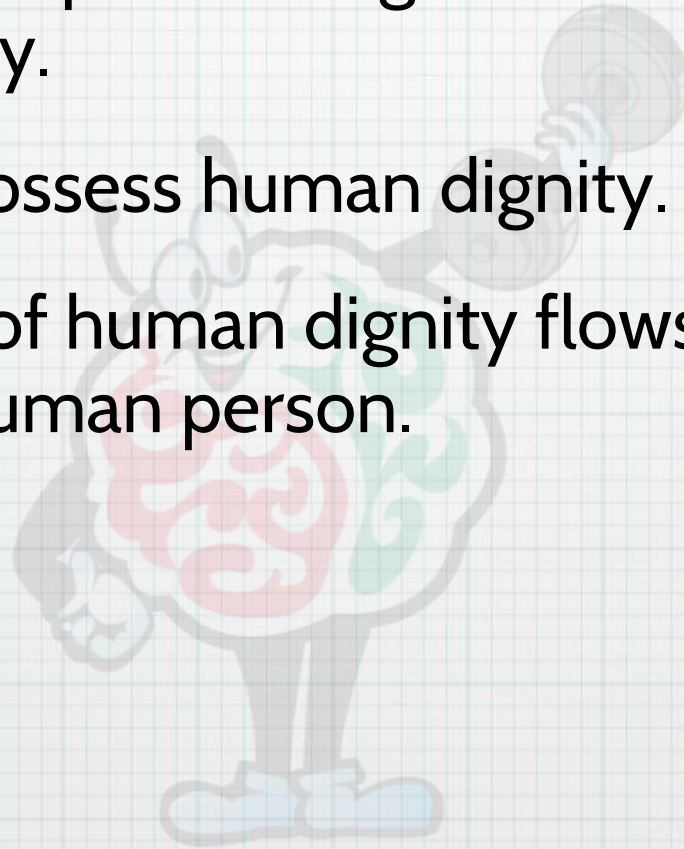
HUMAN DIGNITY

HUMAN DIGNITY

- Intrinsic worth that inheres in every human being.
- From the Christian perspectives, the source of human dignity is rooted in the concept of Christ's redemption and in our ultimate destiny of union with God.
- Human dignity therefore transcends any social order as the basis for rights and is neither granted by society nor can it be legitimately violated by society.
- In this way, human dignity is the conceptual basis for human rights.

HUMAN DIGNITY & HUMAN RIGHTS

- A violation of a person's right is a violation of his/her dignity.
- All persons possess human dignity.
- The exercise of human dignity flows from the dignity of a human person.



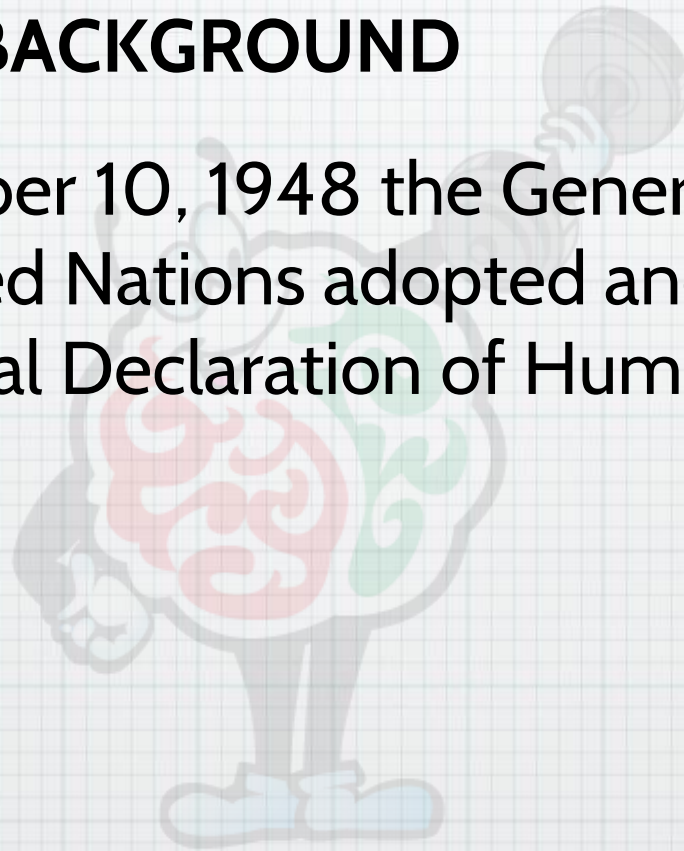
UNIVERSAL DECLARATION OF HUMAN RIGHTS



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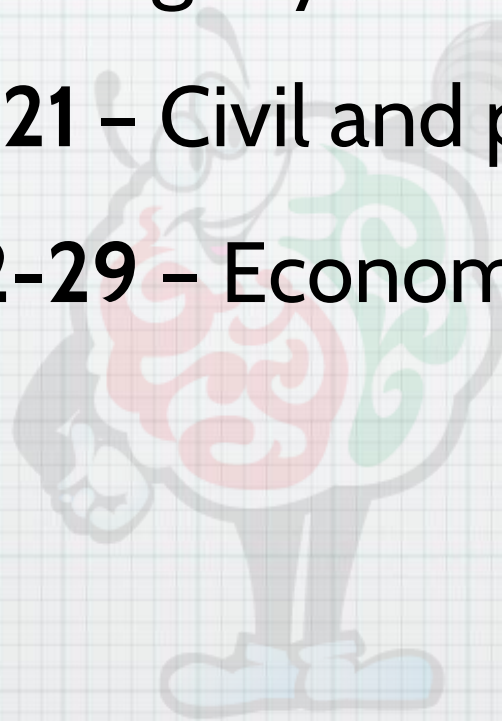
HISTORICAL BACKGROUND

- On December 10, 1948 the General Assembly of the United Nations adopted and proclaimed the Universal Declaration of Human Rights.



THE CONTENT OF THE UDHR

- **Article 1** – "human beings are born free and equal in dignity and rights..."
- **Articles 2-21** – Civil and political rights
- **Articles 22-29** – Economic and Social Rights



SIX CATEGORIES OF RIGHTS IN THE UDHR

1. **Security rights** protect people against murder, injury, and torture
2. **Due process rights** protect people against arbitrary and excessively harsh punishments, and require fair and public trials for those accused of crimes.
3. **Liberty rights** protect people's freedoms in areas such as belief, expression, association, and movement.

SIX CATEGORIES OF RIGHTS IN THE UDHR

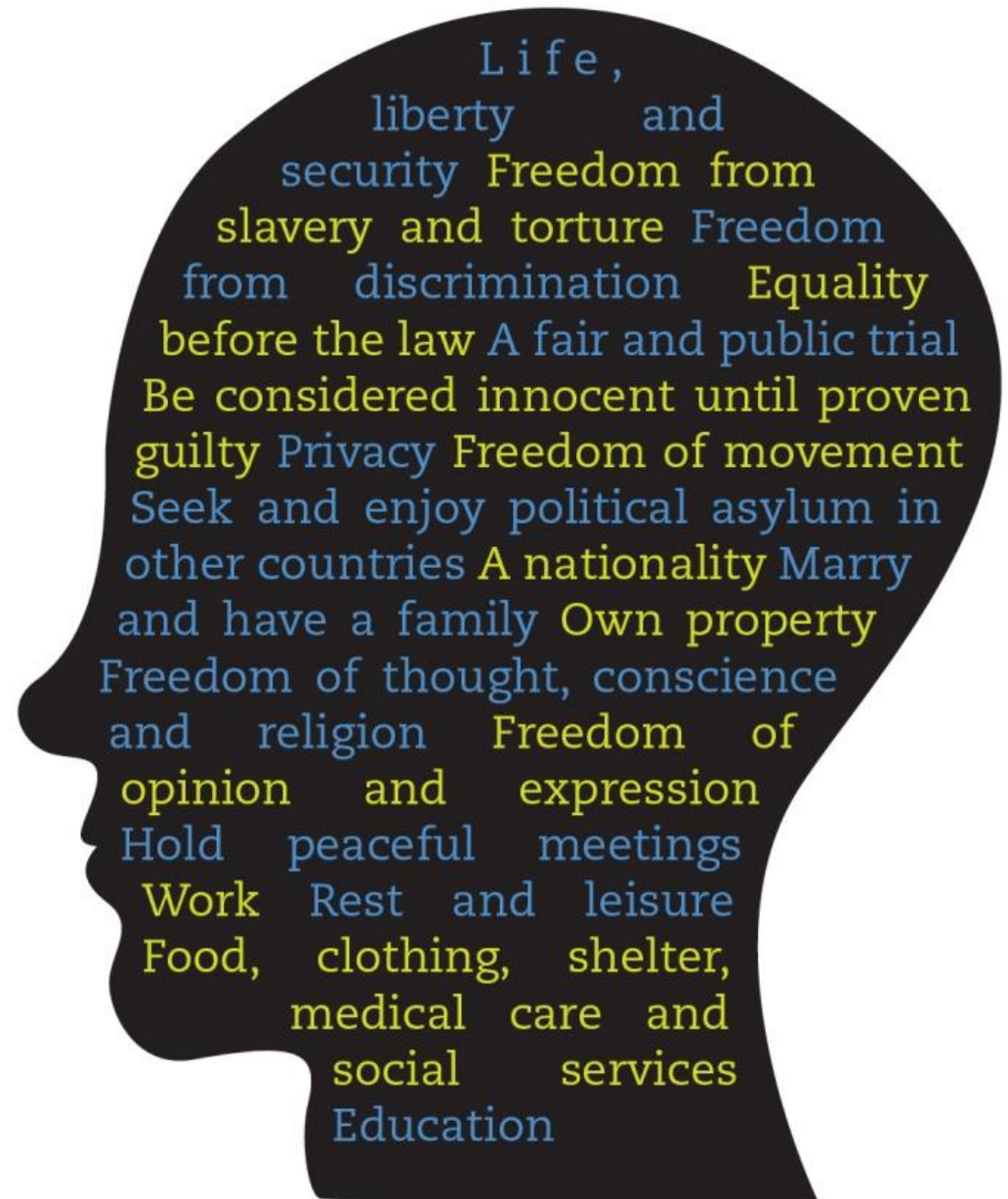
4. **Political rights** protect people's liberty to participate in politics by assembling, protesting, voting, and serving in public office.
5. **Equality rights** guarantee equal citizenship, equality before the law, and freedom from discrimination.
6. **Welfare rights** require that people be provided with education and protected against starvation and severe poverty.

FACTS ABOUT THE UDHR

- ✓ It is an international bill of rights. It covers all of the standard rights, and adds welfare rights.
- ✓ It was conceived during World War II as a way of creating a safer world and avoiding human rights abuses.
- ✓ It helped give a fixed meaning to the idea of human rights by providing an authoritative list.

The United Nations Universal Declaration of Human Rights (UDHR) is the most famous human rights agreement in the world. It contains 30 human rights, as seen on the right.

According to the UDHR, you have the right to...



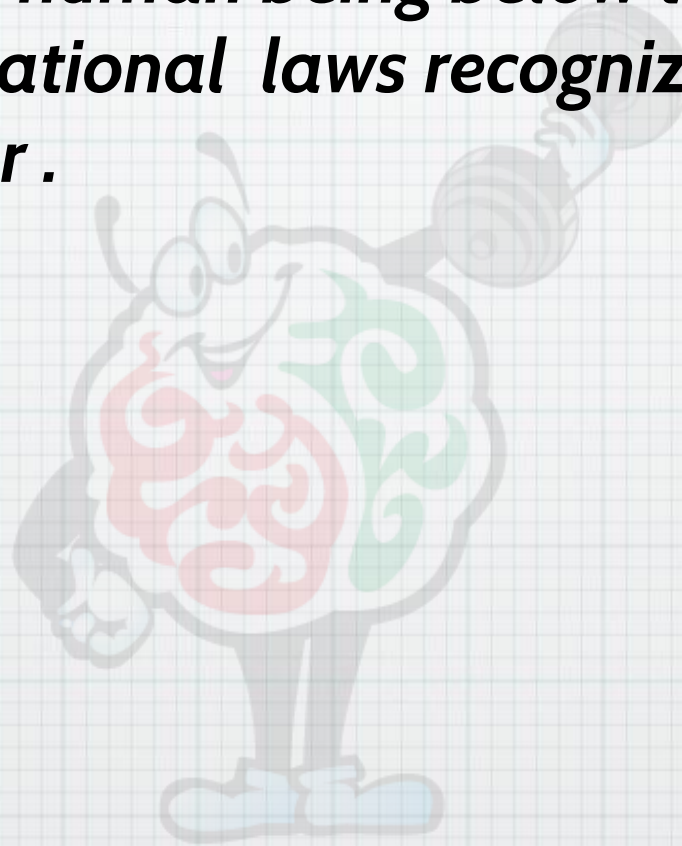
THE UNITED NATIONS CONVENTION ON THE RIGHTS OF THE CHILD



WHO IS A CHILD?

A child is every human being below the age of 18 years unless, national laws recognize the age of majority earlier .

–CRC, Article 1



WHAT ARE THE RIGHTS OF THE CHILD?

- ✓ *To be born. To have a name and nationality.*
- ✓ *To be free. To have a family who will take care of me.*
- ✓ *To have a good education.*
- ✓ *To develop my potentials.*
- ✓ *To have enough food, shelter, a healthy and active body.*
- ✓ *To be given the opportunity for play and leisure.*

WHAT ARE THE RIGHTS OF THE CHILD?

- ✓ *To be given protection against abuse, danger and violence brought by war and conflict.*
- ✓ *To be given the opportunity for play and leisure.*
- ✓ *To be given protection against abuse, danger and violence brought by war and conflict.*
- ✓ *To live in a peaceful community.*
- ✓ *To be defended and assisted by the government.*
- ✓ *To be able to express own views.*

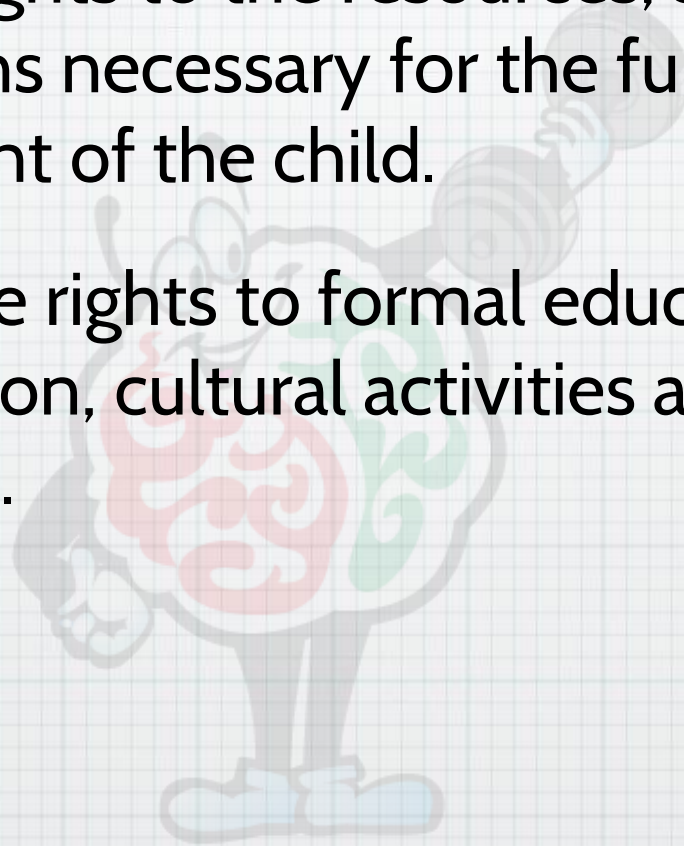
Survival Rights

- Every child has the inherent right to life, and the State has an obligation to ensure the child's survival and development.
- They include rights to adequate food, shelter, clean water, and primary health care.



Development Rights

- These are rights to the resources, skills and contributions necessary for the full development of the child.
- They include rights to formal education, leisure and recreation, cultural activities and information.



Protection Rights

These rights include protection from all forms of child abuse, neglect, exploitation and cruelty, including the right to special protection in times of war and protection from abuse in the criminal justice system.



BILL OF RIGHTS

1987 CONSTITUTION



BILL OF RIGHTS

Section 1. No person shall be deprived of life, liberty, or property without due process of law, nor shall any person be denied the equal protection of the laws.

Section 2. The right of the people to be secure in their persons, houses, papers, and effects against unreasonable searches and seizures of whatever nature and for any purpose shall be inviolable...

BILL OF RIGHTS

Section 7. The right of the people to information on matters of public concern shall be recognized. Access to official records, and to documents and papers pertaining to official acts, transactions, or decisions, as well as to government research data used as basis for policy development, shall be afforded the citizen, subject to such limitations as may be provided by law.

Section 8. The right of the people, including those employed in the public and private sectors, to form unions, associations, or societies for purposes not contrary to law shall not be abridged.

BILL OF RIGHTS

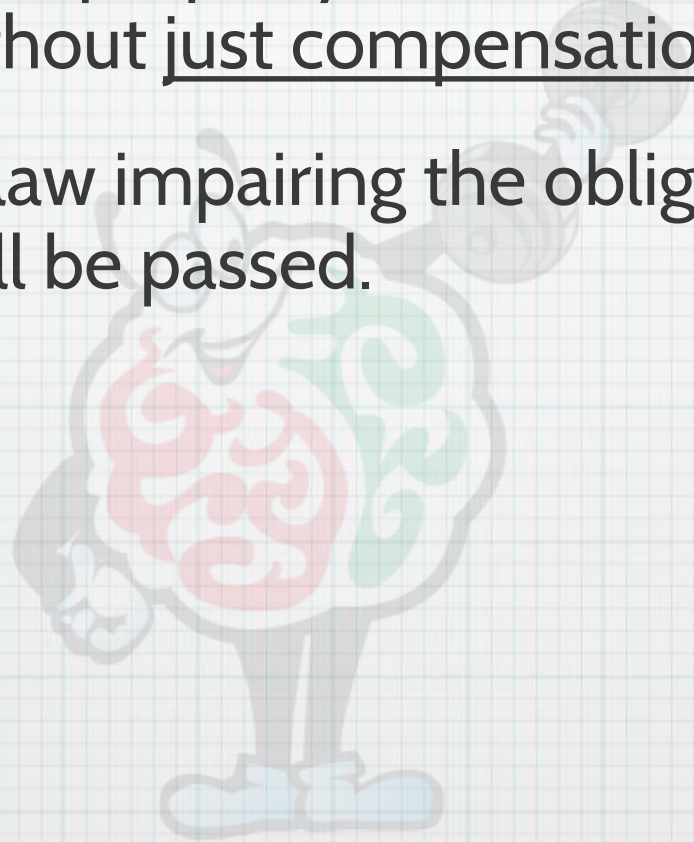
Section 12.

1. Any person under investigation for the commission of an offense shall have the right to be informed of his right to remain silent and to have competent and independent counsel preferably of his own choice. If the person cannot afford the services of counsel, he must be provided with one. These rights cannot be waived except in writing and in the presence of counsel.

BILL OF RIGHTS

Section 9. Private property shall not be taken for public use without just compensation.

Section 10. No law impairing the obligation of contracts shall be passed.



BILL OF RIGHTS

Section 12.

2. No torture, force, violence, threat, intimidation, or any other means which vitiate the free will shall be used against him. Secret detention places, solitary, incommunicado, or other similar forms of detention are prohibited.
3. Any confession or admission obtained in violation of this or Section 17 hereof shall be inadmissible in evidence against him.

BILL OF RIGHTS

Section 15. The privilege of the writ of habeas corpus shall not be suspended except in cases of invasion or rebellion, when the public safety requires it.

Section 16. All persons shall have the right to a speedy disposition of their cases before all judicial, quasi-judicial, or administrative bodies.

BILL OF RIGHTS

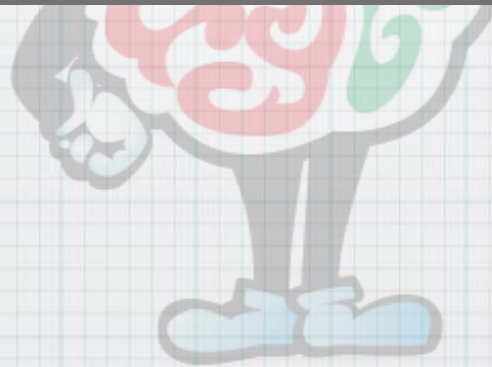
Section 17. No person shall be compelled to be a witness against himself.

Section 18. (1.) No person shall be detained solely by reason of his political beliefs and aspirations.
(2.) No involuntary servitude in any form shall exist except as a punishment for a crime whereof the party shall have been duly convicted.

WRIT OF AMPARO

WRIT OF HABEAS CORPUS

WRIT OF KALIKASAN



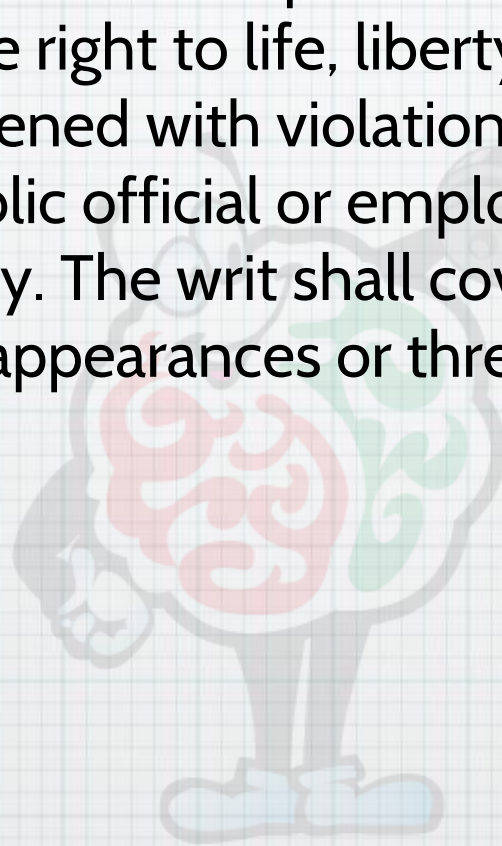
WRIT OF HABEAS CORPUS

The ***WRIT OF HABEAS CORPUS***, literally means "you have the body," is defined as a writ or order directed to the person detaining another, commanding him to produce the body of the prisoner at a designated time and place, with the day and cause of his caption and detention, to do, submit to, and receive whatever the court or judge awarding the writ shall consider in the behalf.

HABEAS CORPUS is a legal action, or writ, through which a person can seek relief from the unlawful detention of him or herself, or of another person. It protects the individual from harming him or herself, or from being harmed by the judicial system.

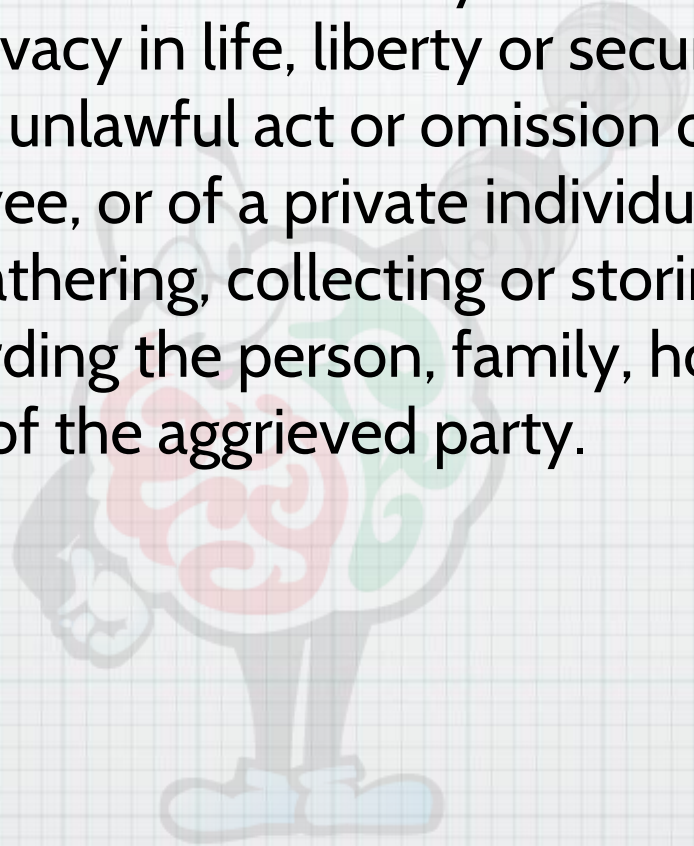
WRIT OF AMPARO

The petition for a writ of amparo is a remedy available to any person whose right to life, liberty and security is violated or threatened with violation by an unlawful act or omission of a public official or employee, or of a private individual or entity. The writ shall cover extralegal killings and enforced disappearances or threats thereof.



WRIT OF HABEAS DATA

The writ of habeas data is a remedy available to any person whose right to privacy in life, liberty or security is violated or threatened by an unlawful act or omission of a public official or employee, or of a private individual or entity engaged in the gathering, collecting or storing of data or information regarding the person, family, home and correspondence of the aggrieved party.



WRIT OF KALIKASAN

The **Writ of Kalikasan** will be the equivalent of the writ of habeas corpus or of the writ of amparo in terms of addressing ecological cases.

The **Writ of Kalikasan** and establishment of “green courts” are pursuant to Article II, Section 16 of the Constitution, which provides that “the State shall protect and advance the right of the people to a balanced and healthful ecology in accord with the rhythm and harmony of nature.”

SELECTED LAWS



REPUBLIC ACT NO. 9165

(June 7, 2002)

AN ACT INSTITUTING THE COMPREHENSIVE
DANGEROUS DRUGS ACT OF 2002, REPEALING
REPUBLIC ACT NO. 6425, OTHERWISE KNOWN
AS THE DANGEROUS DRUGS ACT OF 1972, AS
AMENDED, PROVIDING FUNDS THEREFOR, AND
FOR OTHER PURPOSES

REPUBLIC ACT NO. 7277

*THE "MAGNA CARTA FOR DISABLED PERSONS,
AND FOR OTHER PURPOSES"*

REPUBLIC ACT NO. 9710

THE "MAGNA CARTA OF WOMEN"

REPUBLIC ACT NO. 9344

*"JUVENILE JUSTICE AND WELFARE ACT OF
2006"*